EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 42902/11
Engin AYAYDIN
against Turkey

The European Court of Human Rights (Second Section), sitting on 6 November 2018 as a Committee composed of:

Ledi Bianku, *President,*
Jon Fridrik Kjølbro,
Ivana Jelić, *judges,*

and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above application lodged on 9 February 2011,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Engin Ayaydın, is a Turkish national, who was born in 1985 and lives in Mardin. He was represented before the Court by Ms Rehşan Bataray Saman, a lawyer practising in Diyarbakır.

The applicant's complaints under Articles 10 and 11 were communicated to the Turkish Government ("the Government"), who were represented by their Agent.

The applicant failed to respond to the last Registry's letter of 4 July 2018 (received by his representative on 11 July 2018), reminding him that the period allowed for submission of his observations in reply had expired on 15 May 2018 and that no extension of time had been requested. His attention was drawn to Article 37 § 1 (a) of the Convention.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 29 November 2018.

Hasan Bakırcı Deputy Registrar	Ledi Bianku President